

Ashu Rathi v. State of U.P.

Allahabad High Court · Division Bench · 29 March 2016 · Writ-C No. 13353 of 2016 · Writ-C No. 13353 of 2016 · **Writ disposed of; petitioner relegated to clause 6.5 / appeal.**

HEADNOTE

On a second writ to quash an electricity demand notice and recovery citation and to compel decision of an objection under clause 6.5(d) of the U.P. Electricity Supply Code, 2005, the Allahabad High Court declined to examine the bill. If clause 6.5(d) was satisfied, the consumer was to appeal the demand to the appellate authority; it was for him to approach the concerned authority. An earlier writ had already been dismissed with a direction to avail the clause 6.5 remedy.

FACTUAL SUMMARY

Ashu Rathi sought quashing of a demand notice dated 7 July 2015 issued by respondent no. 5 and a consequential citation dated 21 November 2015, and a direction that his objection dated 21 December 2015 under clause 6.5(d) of the U.P. Electricity Supply Code, 2005 be decided and that no coercive action be taken. An earlier writ by the same petitioner had already been dismissed directing him to avail the clause 6.5 remedy. This was his second writ on that demand.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-alternate-remedy

HOLDING

A second writ seeking quash of a demand notice and recovery citation and a mandamus to decide an objection under clause 6.5(d) was disposed of without examining the bill. If clause 6.5(d) was satisfied, the consumer must appeal the demand to the appellate authority; it is for him to approach the concerned authority. An earlier writ had already been dismissed directing him to avail the clause 6.5 remedy. ¶ 1

FLAG order recites clause 6.5(d) as pleaded; catalogued sub-clauses are 6.5(a), 6.5(b) and 6.5B, not 6.5(d)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF DEMAND NOTICE DATED 7.7.2015 AND CITATION DATED 21.11.2015

No merits examination; petitioner relegated to the Code forum ¶ 1

NOT DECIDED — WHETHER THE PETITIONER HAD IN FACT SATISFIED CLAUSE 6.5(D)

Treated hypothetically; no finding ¶ 1